

Smt. Payel Mukherjee (Dey) vs Gopinath Dey on 11 June, 2015

Author: Jyotirmay Bhattacharya

Bench: Jyotirmay Bhattacharya

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11.06.2015.
dc.

F. A. 80 of 2015
with
CAN 2581 of 2015
with
CAN 2582 of 2015

Smt. Payel Mukherjee (Dey)
versus
Gopinath Dey

Mr. Uttam Kumar Bhattacharyya
... For the Appellant/Applicant.

Re: CAN 2581 of 2015 (condonation of delay)

This is a matrimonial appeal filed by the wife/appellant by challenging the decree of dismissal of the suit for divorce filed by the wife against her husband. In connection with this appeal, the wife/appellant has filed an application under Section 5 of the Limitation Act praying for condonation of delay. According to her, the instant appeal was filed beyond the prescribed period of limitation. However, it is reported by the Additional Stamp Reporter that the appeal was filed within the prescribed period of time.

We have also checked up and found that the appeal was filed within the period of limitation as prescribed under Section 28 of the Hindu Marriage Act.

Under such circumstances, the application under Section 5 of the Limitation Act filed by the appellant/applicant

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is redundant. The said application being CAN 2581 of 2015 is thus dismissed by treating the same as withdrawn.

Re: CAN 2582 of 2015 (Stay)

The appellant/applicant is directed to serve copy of the application for stay upon the husband/respondent intimating

that this application will be listed for hearing four weeks hence. Such service should be effected by Registered Post and/or Speed Post with A/D. The appellant/applicant is directed to file affidavit-of-service on the next date of hearing.

Let the application for stay be included in the list four weeks hence under the heading "Application".

(JYOTIRMAY BHATTACHARYA, J.) (DEBI PROSAD DEY, J.)